

**FEDERAL MARITIME COMMISSION**  
**Office of Administrative Law Judges**

SOUTHERN INTERNATIONAL CO., LTD., *Complainant*

v.

DAYNAMEZ GROUP OF COMPANIES LLC, *Respondent*.

**DOCKET NO. 25-24**

Served May 5, 2026

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**ORDER OF:** Mary Apostolakos HERVEY, *Administrative Law Judge*.

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**ORDER ON RESPONDENT’S MOTION TO EXTEND WRITTEN DISCOVERY DEADLINE**

This matter came on for consideration of Respondent’s Motion to Allow Paper Discovery to be Forwarded by Respondent on April 27, 2026 (Dkt. 34), and Complainant Southern International Co. Ltd.’s Limited Response and Statement of Non-opposition to Respondent’s Motion for Extension of Time and/or Clarification Regarding Written Discovery Service Dates (Dkt. 35.) For the reasons set forth below, the motion is **GRANTED**. The scheduling order is amended to allow as timely all initial written discovery requests served on or before April 27, 2026. All other deadlines in the scheduling order served April 22, 2026 (Dkt. 33), remain in effect and are not modified by this order.

Pursuant to the Scheduling Order served April 22, 2026, the deadline for the parties to serve their initial written discovery requests was April 22, 2026. In its motion, Respondent asserts that it understood April 22, 2026, to be the first day to serve initial discovery requests and not the last day. Respondent asserts that its representative was out of town on vacation from April 17<sup>th</sup> through April 22<sup>nd</sup>, and that its representative’s offices were flooded when he returned from vacation. Thus, Respondent states that it was not ignoring the scheduling order, but rather operating under the understanding that the deadline had not yet passed. It also argues that good cause for an extension exists due to the flooded office. It states that the parties did not confer in person in advance of filing the motion, but that Complaint later confirmed in an email that it has no objection to granting an extension through April 27, 2026, and that the parties agree that the deadline will apply to initial discovery requests served by either party on or before that date. It argues that granting the requested relief will not prejudice Complainant.

In its response, Complainant states that it does not object to granting the requested extension as long as it is applicable to both parties and that no other deadlines are modified. Complainant states that granting the limited relief will not prejudice either party.

Upon review of the record, I find that good cause exists to extend the deadline to serve initial written discovery requests *nunc pro tunc* to April 27, 2026. The current deadlines were established based on the parties’ joint status report and proposed scheduling order filed April 22,

2026 (Dkt. 32.) Given that Respondent's principal was out of town on vacation until April 22, 2026, and therefore unavailable until that date, I find it plausible that Respondent understood it had agreed on a deadline to commence written discovery rather than a deadline to have completed service. Moreover, the fact that Respondent's principal's office was flooded due to a leaky roof during the relevant time frame also constitutes good cause for an extension. Finally, there is no evidence that a five day extension of one deadline will cause prejudice to either party or delay the progress of the case.

Fundamental fairness demands that the extension be applicable to both parties. For this reason, the deadline is extended for all initial written discovery requests served by either party on or before April 27, 2026.

Complainant's request that the order expressly confirm that it does not impact the parties' rights to raise objections in their responses is premature given that none have been raised, and will not be addressed herein for that reason.

For these reasons, Respondent's Motion to Allow Paper Discovery to be Forwarded by Respondent on April 27, 2026, is **GRANTED** and the deadline for both parties to serve their initial written discovery requests is extended *nunc pro tunc* to **April 27, 2026**. All other deadlines in the scheduling order served April 22, 2026, remain in effect and are not modified by this order.

MARY A. HERVEY -S

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Mary Apostolakos Hervey  
Administrative Law Judge